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ITEM WISE EDITORIALS

5th WEEK



AUSTRALIA GROUP & WASSENAAAR

UPSC CSE – GS II

**GS II ... BILATERAL AND REGIONAL AND GLOBAL GROUPINGS
AND AGREEMENTS INVOLVING INDIA AND / OR
AFFECTING INDIA'S INTERESTS**

4

India and the clubs that control war tech exports

What are the Missile Technology Control Regime (MTCR), Wassenaar Arrangement and Australia Group? How do these elite regimes control the export of weapons and transfer of weapons technologies? Why does membership in them matter to India? How far is the NSG for India now?

Subsequent to inclusion in the Missile Technology Control Regime last year, India has (now) been inducted as a member in the Wassenaar Arrangement and Australia Group. This success has come after a long wait and with prolonged efforts, and is an important achievement of any government."

PRESIDENT RAM NATH KOVIND

ADDRESSING THE TECHNOLOGY EXPORT AGREEMENT ON THE FIRST DAY OF THE EIGHTH BIENNIÈME



MISSILE TECHNOLOGY CONTROL REGIME



AGREEMENT

Established in 1987, MTCR is an informal political understanding among states that seek to limit the proliferation of missiles and missile technology. It has 35 members. India was admitted in June 2016. China is not a member. MTCR's initial goal was to control the export of nuclear missiles was expanded in 1992 to include delivery systems for chemical and biological weapons as well. It encourages members not to export missiles delivering any weapons of mass destruction, with special focus on missiles capable of carrying a 100-kg payload over at least 300 km, and on equipment, software, technology for such systems.

HOUSE RULES

According to Arms Control Association, a US-based group, MTCR members are supposed to establish national export control policies for ballistic missiles, cruise missiles, unmanned aerial vehicles, space launch vehicles, drones, remotely piloted vehicles, sounding balloons, their components and technologies. The regime's guidelines say there will be a strong presumption to deny exports of "Category I" items, which include complete missiles and rockets, major sub-systems and production facilities. "Category II" exports – specialised materials, technologies, components, and sub-components for missiles and rockets – some of which also have civilian uses, are less sensitive. MTCR is a voluntary regime, places no legal obligations on its members, and has no enforcement mechanisms. It is clear that exports to fellow members are not treated differently from exports to non-members.

INDIA'S GAINS

India's main benefit from membership is that it has been recognised as a non-proliferator, thereby making it easier for other missile-making countries to export to India. India is the only one of the four recognised nuclear powers (the others are Pakistan, Israel and North Korea) that is a member of MTCR.

AUSTRALIA GROUP



AGREEMENT

The Australia Group (AG) is "an informal forum of countries which, through the harmonisation of export controls, seeks to ensure that exports do not contribute to the development of chemical or biological weapons. According to its website, the principal objective of AG members is to use licensing measures to restrict exports of certain chemicals, biological agents, and chemical, chemical, and biological manufacturing facilities and equipment that could contribute to the proliferation of CBRN. It has 43 members. India was admitted as a participant on January 19 this year. China is not a member of the AG.

HOUSE RULES

Members consent to prevent spread of CBRN proliferation, including being experts in proliferation, biological and toxins. Weapons Convention and Chemical Weapons Convention, being a manufacturer, exporter, transporter of AG-controlled items, and having an effective export control system with legal penalties and sanctions built in. The obligation is not legally binding. "The effectiveness of the cooperation depends solely on a shared commitment to CBRN non-proliferation goals and the strength of their respective national measures" supports AG website. Members must adhere to the AG Chemical Control List, which includes chemical weapons precursors, dual-use chemicals, manufacturing facilities and equipment, and related technology and software; dual-use biological equipment, and related technology and software; human and animal pathogens, and related technology and software.

INDIA'S GAINS

According to India's ambassador to the Conference on Disarmament, Anand Singh Singh Gill, membership would help "strengthen supply chain security in the defence industry, limit the export of dual-use technologies, and 'cut off' along with meeting non-proliferation objectives. Place in AG will strengthen case for NSG membership.

WASSENAA ARRANGEMENT



AGREEMENT

Named after a village in The Hague where it was first signed, Wassenaar Arrangement came into existence a year later. It aims to promote "transparency and greater responsibility in transfers of conventional arms and dual-use goods and technologies" within arms "controlling associations", and members do not acquire them. It has 42 members. India was admitted as a "participating state" on October 8, 2017. Members must be producers/exporters of arms/chemical/biological equipment. International policies for non-proliferation and an effective export control regime must adhere to global non-proliferation compacts including the Nuclear Non-Proliferation Treaty, Biological Weapons Convention, Chemical Weapons Convention.

HOUSE RULES

The Wassenaar Arrangement requires participating states to apply export controls to all items in the Wassenaar "Control List" and the "Military List", with the objective of preventing unauthorised transfers to non-members of these items. Participating states must also exchange information "to assist in developing common understanding of transfer risks". They must report their arms transfers and transfers of dual-use goods and technologies to countries outside the Arrangement on a six-monthly basis. In order to do all this, members agree to "publish, disseminate and provide" a "basis for decision-making through their own national legislation and policies.

INDIA'S GAINS

India's admission despite being a non-signatory of the NPT has been seen as a sign of growing nuclear legitimacy. Membership of the Wassenaar Arrangement is, along with membership of MTCR and Australia Group, three benefits of the way into the membership of the Nuclear Suppliers Group. India's application was supported by Russia, France, the US and UK.

—END

The Indian EXPRESS Tue, 30 January 2018
www.indianexpress.com



The Indian EXPRESS
JOURNALISM OF COURAGE

30th January, 2018



4 India and the clubs that control war tech exports

...Contd.

30th January, 2018

Australia Group

The Australia Group (AG) is “an informal forum of countries which, through the harmonisation of export controls, seeks to ensure that exports do not contribute to the development of chemical or biological weapons. According to its website, the principal objective of AG members is to use licensing measures to restrict exports of certain chemicals, biological agents, and dual-use chemical and biological manufacturing facilities and equipment that could contribute to the proliferation of CBWs. It has 43 members; India was admitted as a participant on January 19 this year. China is not a member of the AG.

House Rules

Members commit to prevent spread of CBW proliferation, including being a party, in good standing, to Biological and Toxins Weapons Convention and Chemical Weapons Convention; being a manufacturer/exporter/transshipper of AG-controlled items; and having an effective export control system with legal penalties and sanctions built in. The obligations are not legally binding: “the effectiveness of the cooperation depends solely on a shared commitment to CBW non-proliferation goals and the strength of their respective national measures,” says the AG website. Members must adhere to the AG Common Control Lists, which include chemical weapons precursors; dual-use chemical manufacturing facilities and equipment, and related technology and software; dual-use biological equipment, and related technology and software; human and animal pathogens and toxins; and plant pathogens.

India's Gains

According to India's ambassador to UN Conference on Disarmament, Amandeep Singh Gill, membership would help “strengthen supply chain security in the dynamic industry fields of biotechnology and chemicals”, along with meeting non-proliferation objectives. Place in AG will strengthen case for NSG membership.

30th January, 2018

4 India and the clubs that control war tech exports

...Contd.

Wassenaar Arrangement

Named after a suburb in The Hague where it was first agreed upon in 1995, the Wassenaar Arrangement came into existence a year later. It aims to promote “transparency and greater responsibility in transfers of conventional arms and dual-use goods and technologies”, so there are no “destabilising accumulations”, and terrorists do not acquire them. It has 42 members; India was admitted as a “participating state” on December 8, 2017. Members must be producers/exporters of arms/sensitive industrial equipment; have national policies for non-proliferation and an effective export control regime; must adhere to global non-proliferation compacts including the Nuclear Non-Proliferation Treaty, Biological Weapons Convention, Chemical Weapons Convention.

House Rules

The Wassenaar Arrangement requires participating states to apply export controls to all items in the Wassenaar “Control List” and the “Munitions List”, with the objective of preventing unauthorised transfers or re-transfers of those items. Participating states must also exchange information “to assist in developing common understandings of transfer risks”. They must report their arms transfers and transfers/denials of certain dual-use goods and technologies to countries outside the Arrangement on a six-monthly basis. In order to do all this, members agree to “guidelines, elements and procedures” as a basis for decision-making through their own national legislation and policies.

India's Gains

India's admittance despite being a non-signatory of the NPT has been seen as a sign of its growing nuclear legitimacy. Membership of the Wassenaar Arrangement is, along with membership of MTCR and Australia Group, three-fourths of the way into the membership of the Nuclear Suppliers' Group. India's application was supported by Russia, France, the US and UK.

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India and the clubs that control war tech exports

What are the Missile Technology Control Regime (MTCR), Wassenaar Arrangement and Australia Group? How do these elite regimes control the export of weapons and transfer of weapons technologies? Why does membership in them matter to India? How far is the NSG for India now?

Subsequent to inclusion in the Missile Technology Control Regime last year, India has (now) been included as a member in the Wassenaar Arrangement and Australia Group. This success has come after a long wait and with prolonged efforts, and is an important achievement of my government.

PRESIDENT RAMNATH KOVIND

ADDRESSING THE MEMBERSHIP OF PARLIAMENT ON THE 100TH DAY OF THE 16TH LOK SABHA



MISSILE TECHNOLOGY CONTROL REGIME



AGREEMENT

Established in 1987, MTCR is an informal political arrangement among states that seek to limit the proliferation of missiles and missile technology. It has 35 members. India was admitted in June 2016. China is not a member. MTCR's initial aim of controlling proliferation of ballistic missiles was expanded in 1993 to include delivery systems for chemical and biological weapons as well. It encourages members not to export missiles delivering any weapons of mass destruction, with special focus on missiles capable of carrying a 500 kg payload over a range of 300 km, and on equipment, software, technology for such systems.

HOUSE RULES

According to the Control List, a US official group, MTCR members are expected to establish national export control policies for ballistic missiles, cruise missiles, unmanned aerial vehicles, space launch vehicles, drones, remotely piloted vehicles, sounding balloons, their components and technologies. The regime's guidelines say "there will be a strong presumption to deny" exports of "Category 1" items, which include complete missiles and missiles, major sub-systems and production facilities. "Category 2" items – specialized materials, technology, equipment, and sub-components for missiles and missiles – some of which also have civilian uses, are less sensitive. MTCR is a voluntary regime, places no legal obligations on members, and has no enforcement mechanism. It is clear that exports to India members are not related differently from exports to non-members.

INDIA'S GAINS

India's main benefit from membership is that it has helped to ease its access to the global market for missiles and missile technology. India is the only one of the five permanent members of the UN Security Council to have been a member of MTCR.

AUSTRALIA GROUP



AGREEMENT

The Australia Group (AG) is "an informal forum of countries which, through the implementation of export controls, seeks to ensure that exports do not contribute to the development of chemical or biological weapons. According to its website, the principal objective of AG members is to use licensing measures to restrict exports of certain chemicals, biological agents, and dual-use (chemical and biological manufacturing facilities and equipment that could contribute to the proliferation of CBRN). It has 43 members. India was admitted as a participant on January 19 this year. China is not a member of the AG.

HOUSE RULES

Members are expected to implement national export controls, including export licensing, technology and transfer of technology, and Chemical Weapons Convention, Biological Weapons Convention, and Chemical Weapons Convention. The AG members are expected to implement national export controls, including export licensing, technology and transfer of technology, and Chemical Weapons Convention, Biological Weapons Convention, and Chemical Weapons Convention. The AG members are expected to implement national export controls, including export licensing, technology and transfer of technology, and Chemical Weapons Convention, Biological Weapons Convention, and Chemical Weapons Convention.

INDIA'S GAINS

According to India's ambassador to US, Ambassador to US, India's membership in the Australia Group will help "strengthen supply chain security in the dynamic industry fields of biotech, food, and chemical", along with meeting non-proliferation objectives. India is well-placed to use the AG membership.

WASSENAA ARRANGEMENT



AGREEMENT

Named after a village in the Hague where it was first signed in 1994, the Wassenaar Arrangement came into existence a year later. It aims to provide "transparency and greater responsibility on matters of conventional arms and dual-use goods and technology", while also "establishing accountability" and "transparency" in the arms trade. It has 42 members. India was admitted as a "participating state" on December 6, 2017. Members must be producers or exporters of conventional arms, and must adhere to global non-proliferation commitments including the Nuclear Non-Proliferation Treaty, Biological Weapons Convention, Chemical Weapons Convention.

HOUSE RULES

The Wassenaar Arrangement requires participating states to apply export controls to all items on the Wassenaar "Control List" and/or "Monitor List", with the objective of preventing proliferation of weapons or technology of these items. Participating states must also exchange information "relevant to developing common understanding of standards". They must report their arms transfers and to provide details of arms dual-use goods and technologies to countries outside the Arrangement on a bi-monthly basis. In order to do all this, members agree to "improve, enhance, and promote" as a basis for decision-making through their own national legislation and policies.

INDIA'S GAINS

India's accession to the Wassenaar Arrangement is a significant step in its efforts to become a responsible member of the international community. India's membership in the Wassenaar Arrangement will help "strengthen supply chain security in the dynamic industry fields of biotech, food, and chemical", along with meeting non-proliferation objectives. India is well-placed to use the AG membership.

The Indian EXPRESS Jan. 18, January 2018
www.indianexpress.com/77088802



The Indian EXPRESS
JOURNALISM OF COURAGE

30th January, 2018

UPSC CSE – GS II

GS II ... BILATERAL AND REGIONAL AND GLOBAL GROUPINGS AND AGREEMENTS INVOLVING INDIA AND / OR AFFECTING INDIA'S INTERESTS

IMPORTANT QUESTION

ESSAY / MAINS / GD / INTERVIEWS

Examine various aspects pertaining to Australia Group and Wassenaar Arrangement



BIOLOGICAL WEAPONS



CHEMICAL WEAPONS

WHAT DO YOU UNDERSTAND BY AUSTRALIA GROUP?

- 1 It is an informal forum of countries, which seeks to ensure that exports do not contribute to the development of chemical or biological weapons.
- 2 This is through the harmonisation of export controls.
- 3 The principal objective is to use licensing measures to restrict exports of certain chemicals, biological agents and dual-use chemical and biological manufacturing facilities and equipment that could contribute to the proliferation of CBWs.

It has 43 members and China is not a member of AG.



WHAT ARE THE RULES PRESCRIBED?

- 1 Members commit to prevent the spread of Chemical and Biological Weapons proliferation, including being a party, in good standing, to Biological and Toxins Weapons Convention and Chemical Weapons Convention.
- 2 They should establish effective export control system with legal penalties and sanctions to be built into the Architecture.



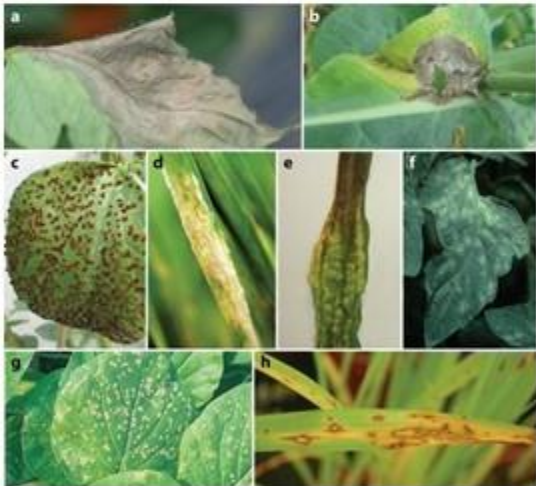
ARE THEY LEGALLY BINDING ON THE MEMBERS?

- 1 The obligations are not legally binding. The effectiveness of the cooperation depends on the shared commitment to non-proliferation goals.
- 2 It is also to ensure the implementation by the strength of their respective national measures.



WHAT ABOUT AUSTRALIA GROUP COMMON CONTROL LISTS?

- Chemical weapons precursors.
- Dual-use chemical manufacturing facilities and equipment.
- Related technology and software.
- Dual-use biological equipment.
- Human and animal pathogens and toxins.
- Plant pathogens.



PLANT PATHOGENS



HUMAN & ANIMAL PATHOGENS



NSG



HOW DOES IT HELP INDIA?

- 1 According to the Indian ambassador to UN Conference on Disarmament, this would help strengthen supply chain security in the dynamic industrial fields of biotechnology and chemicals.
- 2 The membership of Australia Group will strengthen the case for Nuclear Suppliers Group membership.



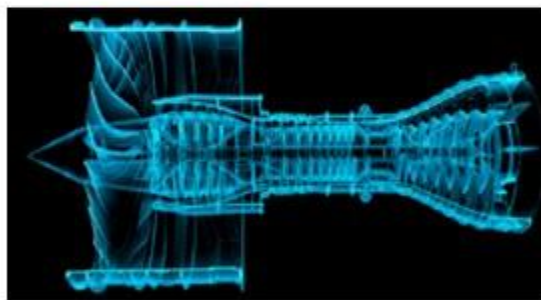
WHAT DO YOU UNDERSTAND BY WASSENAAR ARRANGEMENT?

- 1 It is the place, which is in the suburb of The Hague.
- 2 It was first agreed upon in 1995 and it came into force a year later.
- 3 It has 42 members.
- 4 India was admitted as a "Participating State" on December 8, 2017.



WHAT ARE ITS GOALS?

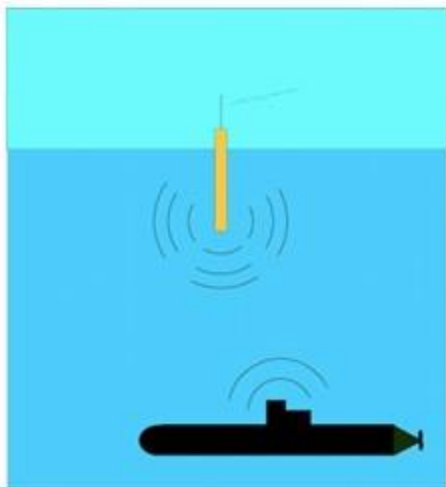
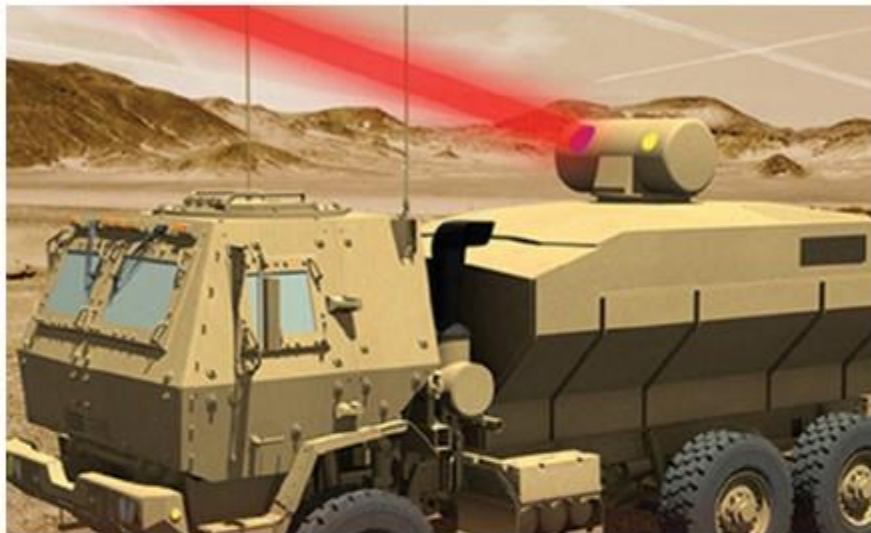
It aims to promote transparency and greater responsibility in transfers of conventional arms and dual-use goods and technologies, so that, there are no “destabilising accumulations” and terrorists do not acquire them.





THE CATEGORIES UNDER WHICH THE INFORMATION IS EXCHANGED

- Battle tanks
- Armed fighting vehicles
- Military aircrafts
- Military helicopters
- Warships
- Missiles / missile systems etc.



WHAT ABOUT TECHNOLOGIES?

- Sensors and lasers
- Navigations and avionics
- Stealth technology such as equipment that could be used for Submarine Detection, Advanced Radar and Jet Engine Technologies
- Aerospace and propulsion



WHAT ARE THE CONDITIONS?

- 1** Members must be producers / exporters of arms / sensitive industrial equipment.
- 2** They should have national policies for non-proliferation.
- 3** They should also have effective export control regimes.
- 4** They must adhere to the global non-proliferation compacts including Nuclear Non-Proliferation Treaty, Biological Weapons Convention, Chemical Weapons Convention.



TO WHOM THESE EXPORT CONTROLS ARE APPLICABLE?

- 1 It requires Participating Countries to apply export controls to all items in the Wassenaar “Control List” and the “Munitions List”.
- 2 The main objective is preventing unauthorised transfers or re-transfers of those items.
- 3 The Participating states should also exchange information to assist in developing the common understanding of transfer risks.

WHAT ARE THE REPORTING STANDARDS?

- 1 They must report their arms transfers and transfers / denials of certain dual-use goods and technologies to countries outside the Arrangement on a six-monthly basis.
- 2 In order to do these things, Countries must agree on “guidelines, elements and procedures” as a basis for decision-making through their own national legislation and policies.





WHAT ARE THE GAINS TO INDIA?

- 1 India was admitted despite a non-signatory of NPT.
- 2 Membership of the Wassenaar Arrangement, along with membership of MTCR and Australia Group, will put India on its way to achieve the membership of NSG.
- 3 India can also have access to latest technologies.

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